

2015 WL 5927846 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Gary MALLETT, Plaintiff,

v.

CITY OF NEW YORK, Detective Claude Mede, Shield No. 3751, individually and in his official capacity, and Police **Officers** John Doe 1-5, individually and in their official capacities, fictitious names used to identify presently unknown individuals, Defendants.

No. 0025449-2015.
October 2, 2015.

Summons

[Philip M. Hines](#), Esq., Held & Hines, LLP, Office and P.O. Address, 2004 Ralph Avenue, Brooklyn, New York 11234, (718) 531-9700, phines@heldhines.com, for plaintiff.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York October 2, 2015

Plaintiff, **GARY MALLETT**, by his attorneys, HELD & HINES, LLP, complaining of the defendants, hereinafter states and alleges as follows upon information and belief that:

1. At all times hereinafter mentioned, Plaintiff was and remains a resident of the State of New York, County of Bronx.
2. The occurrence that gave rise to this action took place in the City and State of New York, County of Bronx.
3. Upon information and belief, and at all times mentioned herein, Defendant, City of New York ("City"), was and remains a body corporate and politic, constituting a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. At all times mentioned herein, the City operates and maintains the New York City Department of Correction ("DOC") pursuant to law.
5. At all times mentioned herein, the City operates and maintains the New York City Police Department ("NYPD") pursuant to law.
6. Upon information and belief, and at all times hereinafter mentioned, Defendant, Detective Claude Mede ("Det. Mede"), is a resident of the State of New York.

7. At all times hereinafter mentioned, Det. Mede was a police **officer** employed by the City of New York.
8. At all times hereinafter mentioned, Det. Mede was a member of service of the NYPD.
9. At all times hereinafter mentioned, Defendants, Police **Officers** John Doe 1-5 ("P.O. John Does"), were police **officers** employed by the City of New York. P.O. John Does are sued under fictitious designations because plaintiff has not been able to ascertain their names notwithstanding reasonable efforts to do so.
10. At all times hereinafter mentioned, P.O. John Does were members of service of the NYPD.
11. At all times hereinafter mentioned, Det. Mede and P.O. John Does were acting under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York and under the authority of their various offices and appointments for the City of New York. Det. Mede and P.O. John Does are sued in their individual and official capacities.
12. Within ninety (90) days from the date the claim sued upon arose, the plaintiff caused a Notice of Claim to be served upon the City of New York, in writing, sworn to by or on behalf of the plaintiff.
13. On January 16, 2015, Plaintiff caused a Notice of Claim to be electronically filed with the City of New York, setting forth the time, place, substance of claim, and description of injuries sustained by the plaintiff.
14. Thereafter, Plaintiff moved for leave to amend and/or serve a late notice of claim. By Order of the Hon. Mitchell J. Danziger, J.S.C., dated February 10, 2015, Plaintiff's amended Notice of Claim was deemed timely served nunc pro tunc.
15. More than thirty (30) days have elapsed since said Notice of Claim was filed and the City of New York has neglected and refused to make an adjustment thereof.
16. The City did not conduct a statutory hearing pursuant to [Section 50-h of the General Municipal Law](#), and as such, same is deemed waived.
17. This action is commenced within one year and ninety days of the incident.

STATEMENT OF FACTS

18. On or about October 12, 2014, at approximately 10:20 p.m., Plaintiff was lawfully walking down the stairwell within the property known and designated as 2225 Lacombe Avenue, Bronx, New York when an undercover NYPD **officer** stopped, questioned and frisked Plaintiff without cause. Plaintiff exited said property without further incident, but was again stopped and frisked by several other undercover police **officers** once outside the property. Plaintiff was then falsely arrested by Detective Claude Mede ("Det. Mede") and P.O. John Does, maliciously prosecuted by said **officers**, and falsely detained, confined and imprisoned for six (6) days by the City of New York, New York City Police Department, and City of New York Department of Correction, their agents, servants and employees.
19. Due to false and perjurious statements made by Det. Mede and P.O. John Does to the Bronx County District Attorney's Office, Petitioner was falsely arraigned on violations of [N.Y.P.L. § § 220.39](#) and [220.03](#), a felony and misdemeanor, respectively. Said **officers** provided false sworn statements in an effort to substantiate purported crimes that said **officers** knew Plaintiff had not committed. All charges against Plaintiff were dismissed and sealed on November 12, 2014 upon the Grand Jury returning a No True Bill.
20. Defendants did not have reasonable suspicion to stop, question and frisk Plaintiff.

21. Defendants did not have probable cause to arrest Plaintiff.

22. Due to the aforesaid, Plaintiff was unjustly detained and incarcerated by the City of New York, NYPD and DOC, their agents, servants and employees, for approximately six (6) days. Additionally, Plaintiff was caused to suffer inter alia physical, psychological and emotional injuries, pain and suffering, loss of liberty, and pecuniary losses.

23. Prior to arresting Plaintiff, Det. Mede and P.O. John Does had a non-delegable duty to fully and faithfully investigate allegations against Plaintiff.

24. Had Det. Mede and P.O. John Does fully and faithfully investigated allegations against Plaintiff, it would have become readily apparent to said **officers** that said allegations were false, implausible, not credible, inconsistent, unsupported by fact, and/or contradicted by witnesses including eyewitnesses.

25. Any reasonable police **officer** having investigated said allegations would have found same to be false, implausible, not credible, inconsistent, unsupported by fact, and/or contradicted by witnesses including eyewitnesses.

26. Any reasonable police **officer** having investigated said allegations would not have arrested Plaintiff.

27. Any reasonable police **officer** having investigated said allegations would not have initiated criminal proceedings against Plaintiff.

28. In violation of their duties and sworn oaths as police **officers**, Det. Mede and P.O. John Does arrested Plaintiff despite said allegations against Plaintiff being false, implausible, not credible, inconsistent, unsupported by fact, and contradicted by witnesses including eyewitnesses.

29. Due to the false and perjurious statements made by Det. Mede and P.O. John Does in official records, Court filings, and Court proceedings, Plaintiff was falsely arrested, charged, arraigned and maliciously prosecuted for crimes it was readily ascertainable that he did not commit.

30. Det. Mede and P.O. John Does provided false sworn statements and submitted false official reports in an effort to establish reasonable suspicion for their unlawful stop and frisk of Plaintiff.

31. Det. Mede and P.O. John Does provided false sworn statements and submitted false official reports in an effort to establish probable cause for Plaintiff's arrest, substantiate false criminal charges against Plaintiff, and ensure that Plaintiff would be found guilty, despite knowing, or upon reasonable police investigation discovering, that Plaintiff had not committed the offenses claimed.

32. The conduct of Defendants, Det. Mede and P.O. John Does, throughout their purported investigation, arrest and prosecution of Plaintiff was intentional, reckless, negligent and/or deliberately indifferent.

33. Throughout the investigation, arrest and prosecution of Plaintiff, Det. Mede and P.O. John Does relied upon statements that a reasonable police **officer** would have found to lack truth and credibility and be biased; relied upon refuted and inconsistent statements; unreasonably ignored and/or failed to review counter-statements and eyewitness accounts; and the defendants were otherwise reckless, negligent and/or deliberately indifferent in the instance.

34. Det. Mede and P.O. John Does had notice, both actual and constructive, that false criminal allegations were made against the plaintiff.

35. Det. Mede and P.O. John Does maliciously continued to prosecute criminal charges against the plaintiff despite having notice, both actual and constructive, that Plaintiff did not commit the crimes alleged.

36. On November 12, 2014, all criminal charges against Plaintiff were dismissed with prejudice upon the Grand Jury returning a No True Bill and the record sealed by statute.

37. As a result of the foregoing, Plaintiff was caused to sustain physical, psychological and emotional injuries, loss of liberty, degradation, humiliation, loss of reputation and esteem, and pecuniary loss all due to the intentional, negligent, reckless and deliberately indifferent conduct of the defendants.

38. This action falls within one or more exceptions of [CPLR § 1602](#).

AS AND FOR A FIRST CAUSE OF ACTION: CIVIL RIGHTS VIOLATIONS

39. Plaintiff repeats and realleges each and every allegation of the Complaint numbered as paragraphs 1 through 38 with the same force and effect as if more fully set forth herein at length.

40. As set forth above, Plaintiff was stopped, questioned, frisked, detained, arrested, imprisoned and maliciously prosecuted by Defendants, Det. Mede and P.O. John Does, without probable cause, reasonable suspicion, or other legal justification.

41. The defendants' actions were under color of law and in violation of Plaintiff's clearly-defined civil rights, as said rights are secured by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States of America, [42 U.S.C. § 1983 et seq.](#)

42. As set forth above, the defendants, acting under the color of law, harassed, intimidated, and abused their authority; falsely stopped, questioned, frisked, detained, arrested and imprisoned Plaintiff; maliciously prosecuted Plaintiff; conspired to violate Plaintiff's civil rights; conspired to falsely detain, arrest, imprison and prosecute Plaintiff; conspired with the Bronx County District Attorney's Office to maliciously prosecute Plaintiff; and knowingly drafted and/or filed, or conspired to file, false official reports against Plaintiff in order to cover-up evidence of their unlawful activities, all without legal cause or justification and with purposeful intent to cause harm to Plaintiff.

43. The City's long-standing failure and/or refusal to supervise the police **officers** and supervisors under its control is now so institutionalized as to constitute a policy or custom of tolerating and authorizing the type of abuse alleged herein. It is this policy or custom of abuse and cover-up that has caused the deprivation of the plaintiff's rights.

44. Said policy or custom is further evidenced by frequent and significant findings of misconduct over a period of years by commissioners, command personnel, supervisors, and the **officers** they supervise.

45. The failures and refusals of the City and its senior officials to hold their **officers** accountable is a proximate cause of the injuries sustained by the plaintiff.

46. Through promotions and other financial and status incentives, the City has the power to reward **officers** who perform their jobs adequately and to punish - or at the very least fail to reward - those who do not. The City's actions and omissions have created and maintained the perception among high-ranking supervisors that a supervisor who turns a blind eye towards evidence of this type of abuse, and fails to report or investigate these incidents, will suffer no damage to his or her career or financial penalty.

47. The pattern of unchecked abuse by **officers**, and the persistent failure or refusal of the City and its senior officials to supervise these persons properly and to take action to curb the misconduct alleged herein, demonstrates a policy of deliberate indifference which tacitly authorizes the abuses claimed by the plaintiff.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff and were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

50. As a direct and proximate result of the misconduct detailed above, Plaintiff sustained the damages alleged herein.

51. As a result of the foregoing, Plaintiff was caused to sustain physical, psychological and emotional injuries, loss of liberty, degradation, humiliation, loss of reputation and esteem, and pecuniary loss all due to the intentional, negligent, reckless and deliberately indifferent conduct of the defendants.

52. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined at trial but in any event in excess of the jurisdictional limits of all lesser courts, together with attorney's fees and the costs and disbursements of this action.

53. Plaintiff is entitled to reasonable attorneys' fees and costs predicated upon [42 U.S.C. § 1988](#), which authorizes the award of reasonable attorney's fees and costs to prevailing plaintiffs in actions brought pursuant to [42 U.S.C. § 1983](#).

54. In addition to compensatory damages against all defendants, Plaintiff seeks an award of punitive damages against Det. Mede and P.O. John Does.

AS AND FOR A SECOND CAUSE OF ACTION: VIOLATION OF NEW YORK CONSTITUTION AND STATUTES

55. Plaintiff repeats and realleges each and every allegation of the Complaint numbered as paragraphs 1 through 54 with the same force and effect as if more fully set forth herein at length.

56. The misconduct of Det. Mede and P.O. John Does alleged herein was in violation of Plaintiff's rights secured by the Constitution of the State of New York, as well as Article 15 of the [New York State Executive Law, Section 40 et seq.](#) of the New York State Civil Rights Law, and Sections 8-107 et seq., 8-502 et seq. and 8-603 et seq. of the Administrative Code of the City of New York.

57. At all times alleged herein, Det. Mede and P.O. John Does acted within the scope of their employment with the City. Said acts were without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by [Article I § 12 of the New York Constitution](#).

58. Defendants, their **officers**, agents, servants, and employees, including but not limited to Det. Mede and P.O. John Does, were responsible for the deprivation of Plaintiff's State constitutional rights.

59. Defendant City, as employers of the defendant **officers**, is responsible for the wrongdoing of its police **officers** under the doctrine of respondeat superior.

60. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages alleged herein.

61. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined at trial but in any event in excess of the jurisdictional limits of all lesser courts, together with attorney's fees and the costs and disbursements of this action.

62. In addition to compensatory damages against all defendants, Plaintiff seeks an award of punitive damages against Det. Mede and P.O. John Does.

**AS AND FOR A THIRD CAUSE OF ACTION: CLAIMS
AGAINST DET. MEDE AND P.O. JOHN DOES, INDIVIDUALLY**

63. Plaintiff repeats and realleges each and every allegation of the Complaint numbered as paragraphs 1 through 62 with the same force and effect as if more fully set forth herein at length.

64. As set forth herein, Det. Mede and the P.O. John Does did assault, batter, harass, falsely arrest, falsely imprison and maliciously prosecute Plaintiff.

65. As a result of the aforesaid occurrence, Plaintiff was caused to and did suffer the damages aforesaid.

66. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined at trial but in any event in excess of the jurisdictional limits of all lesser courts, together with attorney's fees and the costs and disbursements of this action.

67. In addition to compensatory damages against these defendants, Plaintiff seeks an award of punitive damages against Det. Mede and P.O. John Does.

**AS AND FOR A FOURTH CAUSE OF ACTION: INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

68. Plaintiff repeats and realleges each and every allegation of the Complaint numbered as paragraphs 1 through 67 with the same force and effect as if more fully set forth herein at length.

69. The aforesaid acts of the defendants, their agents, servants and employees, acting individually and/or in conjunction with the other defendants, were intentional, malicious and excessive, and served no reasonable or legitimate penological interest.

70. The aforesaid acts of the defendants, their agents, servants and employees, acting individually and/or in conjunction with the other defendants, were negligent and served no reasonable or legitimate penological interest.

71. The defendants' intentional, reckless and/or negligent conduct constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society and unreasonably endangered Plaintiff's physical safety.

72. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained emotional and mental distress and other injuries associated therewith.

73. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined at trial but in any event in excess of the jurisdictional limits of all lesser courts, together with attorney's fees and the costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION: CONSPIRACY

74. Plaintiff repeats and realleges each and every allegation of the Complaint numbered as paragraphs 1 through 73 with the same force and effect as if more fully set forth herein at length.

75. As set forth above, the defendants conspired with and amongst one another and the Bronx County District Attorney's Office to assault, batter, harass, falsely arrest, falsely imprison and maliciously prosecute Plaintiff, and otherwise deprive the plaintiff of his constitutional, statutory and common law rights.

76. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined at trial but in any event in excess of the jurisdictional limits of all lesser courts, together with attorney's fees and the costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION: NEGLIGENCE

77. Plaintiff repeats and realleges each and every allegation of the Complaint numbered as paragraphs 1 through 76 with the same force and effect as if more fully set forth herein at length.

78. As set forth above, Defendants, their agents, servants and employees, were negligent in the instance and the proximate cause of injuries and damages suffered by Plaintiff.

79. As a result of the foregoing, Plaintiff suffered severe and serious physical, psychological and emotional injuries.

80. Inasmuch as the defendant police **officers** were acting for, upon, and/or in furtherance of the business of their employer(s) and/or within the scope of their employment, the City is liable under the doctrine of *respondeat superior* for the tortious actions of its **officers**.

81. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined at trial but in any event in excess of the jurisdictional limits of all lesser courts, together with attorney's fees and the costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING, TRAINING, SUPERVISION AND RETENTION

82. Plaintiff repeats and realleges each and every allegation of the Complaint numbered as paragraphs 1 through 81 with the same force and effect as if more fully set forth herein at length.

83. Defendant City was negligent, careless and/or reckless in the hiring, training, retention, supervision, direction, control, appointment and/or promotion of their agents, servants and employees, including but not limited to the defendant **officers**, in that said employees lacked the experience and ability to be employed by the City; in failing to exercise due care and caution in their hiring, appointment and promotion practices, and in particular, hiring individuals who lacked the mental capacity and ability to function as employees of the City; in that the defendant-employees lacked the maturity, sensibility and intelligence to be employed by the City; in that the City knew of the lack of ability, experience and maturity of the defendant-employees when it hired them; in that the City, its agents, servants and/or employees, failed to suspend and/or terminate the defendant-employees when such action was either proper or required; and in being otherwise careless, negligent and reckless in the instance.

84. The failure of the City to adequately train their agents, servants and employees, including but not limited to the defendant **officers**, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the Charter, rules and regulations of the City of New York, is evidence of the reckless lack of cautious regard for the rights of the public in general and Plaintiff in particular, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

85. Defendants City knew or should have known in the exercise of reasonable care, the propensities of its agents, servants and employees, including but not limited to the defendant **officers**, to engage in the wrongful conduct heretofore alleged in this Complaint.

86. Defendant City knew or should have known that its policies, customs and practices, as well as its negligent hiring, retention, supervision, training, appointment and promotion of its agents, servants and employees, including but not limited to the defendant **officers**, created an atmosphere where the most prominent offenders felt assured that their most brazen acts of abuse, misconduct and neglect would not be swiftly and effectively investigated and prosecuted.

87. That the mistreatment and abuses experienced by the plaintiff, as set forth above, were the reasonably foreseeable consequence of the City's negligent conduct.

88. The aforesaid acts of the City resulted in the mistreatment and abuse of the plaintiff as alleged herein.

89. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages alleged herein.

90. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined at trial but in any event in excess of the jurisdictional limits of all lesser courts, together with attorney's fees and the costs and disbursements of this action.

WHEREFORE, the plaintiff requests the following relief:

1. An award of compensatory damages against all defendants, jointly and severally, in an amount to be determined at trial;
2. An award of punitive damages against the individual defendants in an amount to be determined at trial;
3. An award of reasonable attorney's fees, costs and disbursements; and
4. Such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York October 2, 2015

Yours, etc.,

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